

Mukhtar Ahmad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2017 · WRIT - C No. 21918 of 2017 · **Writ disposed; petitioner left to Clause 5.9 procedure.**

HEADNOTE

A writ complaining that the electricity meter at the consumer's premises is defective, and that the licensee has taken no steps after being told, is disposed of without a merits inquiry. Such a complaint is to be examined by the concerned authority under the procedure in Clause 5.9 of the U.P. Electricity Supply Code, 2005; the consumer is left to seek redressal there.

FACTUAL SUMMARY

Mukhtar Ahmad petitioned the Allahabad High Court in a writ complaining of an electricity meter installed at his premises. He asserted that the respondents, including the distribution licensee, had been told on earlier occasions that the meter was defective, yet they had taken no steps to redress the grievance. Counsel appeared for the petitioner and for respondent Nos. 2 to 4. The Court recorded that this was the sole grievance raised and did not inquire into whether the meter was in fact defective.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.9(c)

defective meter

HOLDING

A consumer's complaint that the electricity meter at his premises is defective, and that the licensee has taken no steps despite being informed, warrants examination by the concerned authority under the procedure in Clause 5.9 of the Electricity Supply Code, 2005. The High Court will not decide that grievance on a writ petition and will dispose of the petition, leaving the consumer to seek redressal under that clause. ¶ 1

FLAG Order cites Clause 5.9 generally, not sub-clause 5.9(c).

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ complaining that the electricity meter at the consumer's premises is defective, and that the licensee has taken no steps after being told, is disposed of without a merits inquiry. Such a complaint is to be examined by the concerned authority under the procedure in Clause 5.9 of the U.P.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY METER IS DEFECTIVE AND WHAT REDRESSAL IS DUE

¶ 1